

25VECV06555 25VECV06555

County: los-angeles

Division: Civil Law and Motion

Department: T

Hearing date: 2026-08-24

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Case Number: 25VECV06555 Hearing Date: August 24, 2026 Dept: T

25VECV06555 Ashjian v Taqueria

[TENTATIVE] ORDER: Defendant Taqueria El Tapatio 1, Inc.'s Motion to Set Aside Entry of Default is GRANTED. Defendant Taqueria El Tapatio 1, Inc. is ORDERED to file the attached Proposed Answer within 5 days.

Introduction

Defendant Taqueria El Tapatio 1, Inc. (Defendant) moved to set aside the entry of default entered on April 1, 2026. An opposition was due August 11, 2026, and none was filed.

[NOTE: Defendant has a typo in the spelling of a case name. Defendant cited to Crane v. Camp (1964) 225 Cal.App.2d 200. (Mtn pg. 5:23.) "Camp" is spelled wrong and the correct spelling is "Kampe".]

Discussion

Defendant moved to set aside the default because of their mistake, surprise, and excusable neglect of relying on their insurer, State Farm, to respond to the Complaint. (Code Civ. Proc., sec. 473(b).) Defendant provided that they tendered the summons and complaint to their insurer when the summons and complaint were served. However, for unknown reasons, it was not until receipt of the request for entry of default that State Farm learned of the action. (See declarations of Renato Torres, Andy Barajas, and Terry Ridgeway.) With the declarations of Defendant, Defendant's insurance broker, and Defendant's insurer, the facts provided are sufficient to show Defendant's mistake, inadvertence, surprise, or excusable neglect in failing to

file a response. The motion is persuasive.

The motion to set aside default is GRANTED.

IT IS SO ORDERED, CLERK TO GIVE NOTICE.